

25SMCV05001 25SMCV05001

County: los-angeles

Division: Civil Law and Motion

Department: 207

Hearing date: 2026-08-03

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=BH%20%2C207%2C08%2F03%2F2026

Source SHA-256: aa0788e09e9412ca314f9bcdcf22ae384ee0ec51eaae4646986abce7bd87cef13

Case Number: 25SMCV05001 Hearing Date: August 3, 2026 Dept: 207

TENTATIVE

RULING

DEPARTMENT

207

HEARING DATE

August

3, 2026

CASE NUMBER

25SMCV05001

MOTIONS

Motions

to be Relieved as Counsel

MOVING PARTY

Ashley

R. Fickel of Stinson LLP

OPPOSING PARTY

(none)

MOTIONS

Ashley R. Fickel of Stinson LLP, counsel
for Plaintiff/Cross-Defendant Lake Scio Holdings, LLC
and Cross-Defendant Marisa Polvino ("Counsel") moves to be relieved as
counsel, citing irreconcilable differences with the clients. The motions are unopposed.

LEGAL

STANDARD

Code of Civil Procedure section 284 provides "[t]he attorney in an
action or special proceeding may be changed at any time before or after
judgment or final determination as follows: 1. Upon the consent of both client
and attorney, filed with the clerk, or entered in the minutes; 2. Upon the
order of the court, upon the application of either client or attorney, after
notice from one to the other."

Procedural Requirements

California Rules of Court, rule 3.1362, requires:

(1) the motion must be made on
form MC-051; (subd. (a));

(2) it must be accompanied by
a declaration on form MC-052 stating why the motion is brought under Code of
Civil Procedure section 284(2) instead of a consent brought under section
284(1); (subd. (c));

(3) a proposed order on form
MC-053 must be lodged with the court, specifying all hearing dates scheduled in
the action or proceeding, including the date of trial, if known; (subd. (e));
and

(4) The documents must be
served on the client and on all parties that have appeared in the case. (subd.
(d).)

If

the notice is served by mail or electronic service, it must be accompanied by a declaration indicating that the address served is the current address, or in the case of service by mail, that it was served on the last known address and a more current address could not be located after reasonable efforts within 30 days before filing the motion. (Ibid.) The court may delay the effective date of the order relieving counsel until proof of service of a copy of the signed order on the client has been filed with the court.”

(Ibid.)

Substantive Requirements

Rules of Professional Conduct, rule 1.16(a) outlines the reasons a lawyer must withdraw from representation of a client:

(1) the

client is bringing an action, conducting a defense, asserting a position in litigation, or taking an appeal, without probable cause and for the purpose of harassing or maliciously injuring any person;

(2) the

representation will result in violation of the Rules of Professional Conduct or the State Bar Act;

(3) the

lawyer's mental or physical condition renders it unreasonably difficult to carry out the representation effectively; or

(4) the

client discharges the lawyer.

Rules of Professional Conduct, rule 1.16(b) outlines the reasons a lawyer may withdraw from representation of a client:

(1) the

client insists upon presenting a claim or defense in litigation, or asserting a position or making a demand in a non-litigation matter, that is not warranted under existing law and cannot be supported by good faith argument for an extension, modification, or reversal of existing law;

(2) the

client either seeks to pursue a criminal or fraudulent course of conduct or has used the lawyer's services to advance a course of conduct that the lawyer reasonably believes was a crime or fraud;

(3) the

client insists that the lawyer pursue a course of conduct that is criminal or fraudulent;

(4) the

client by other conduct renders it unreasonably difficult for the lawyer to carry out the representation effectively;

(5) the

client breaches a material term of an agreement with, or obligation, to the lawyer relating to the representation, and the lawyer has given the client a reasonable warning after the breach that the lawyer will withdraw unless the client fulfills the agreement or performs the obligation;

(6) the

client knowingly and freely assents to termination of the representation;

(7) the

inability to work with co-counsel indicates that the best interests of the client likely will be served by withdrawal;

(8) the

lawyer's mental or physical condition renders it difficult for the lawyer to carry out the representation effectively;

(9) a

continuation of the representation is likely to result in a violation of these rules or the State Bar Act; or

(10)

the lawyer believes in good faith in a proceeding pending before a tribunal that the tribunal will find the existence of other good cause for withdrawal.

DISCUSSION

Counsel has filed forms MC-051, MC-052 and MC-053. The attorney declarations (MC-052) indicate that the motions were filed instead of filing consents because of “irreconcilable differences” arising between counsel and the clients. (MC-052 at ¶ 2.) As such, the Court finds that the motions comply with the Rules of Professional Conduct, rule 1.16(b)(4).)

The proofs of service indicate each of these forms were served electronically on counsel for the other parties to the action, and electronically and by mail to the clients.

However, the attorney declarations indicate the clients’ addresses were confirmed current by: “Client was served by mail at client’s last known mailing address. Client was also served by electronic service at the client’s current electronic service address.” (MC-052 at ¶ 3.) However, the statement that the clients were served at their last known physical and electronic addresses does not answer the question of whether Counsel confirmed any of these addresses as current within the past 30 days, or whether Counsel has been unable to confirm the addresses are current, despite the efforts listed. Therefore, the Court finds the motions to be procedurally improper.

CONCLUSION AND ORDER

For the foregoing reasons, the Court denies both motions on procedural grounds without prejudice.

Counsel shall provide notice of the Court’s ruling and file the notice with a proof of service forthwith.

DATED: August 3, 2026 _____/s/ _____

Michael
E. Whitaker

Judge
of the Superior Court